

Fil-Chi Media Productions, Inc.

EMPLOYEE MANUAL

Updated as of June 9, 2023

TABLE OF CONTENTS

SECTION 1 - INTRODUCTION

- 1.1 Changes in Policy
- 1.2 Employment Applications
- 1.3 Employment Relationship

SECTION 2 - DEFINITIONS OF EMPLOYEE STATUS

“Employees” Defined

SECTION 3 - EMPLOYMENT POLICIES

- 3.1 Non-Discrimination
- 3.2 Non-Disclosure/Confidentiality
- 3.3 Representation of Authority
- 3.4 New Employee Orientation
- 3.5 Office Hours
- 3.6 Lunch Periods
- 3.7 Break Periods
- 3.8 Personnel Files
- 3.9 Personnel Data Changes
- 3.10 Inclement Weather/Emergency Closings
- 3.11 Performance Review and Planning Sessions
- 3.12 Outside Employment
- 3.13 Corrective Action
- 3.14 Employment Termination
- 3.15 Health and Safety
- 3.16 Health-Related Issues
- 3.17 Employee Requiring Medical Attention
- 3.18 Building Security
- 3.19 Insurance on Personal Effects
- 3.20 Supplies; Expenditures; Obligating the Company
- 3.21 Expense Reimbursement
- 3.22 Parking
- 3.23 Visitors in the Workplace

SECTION 4 - STANDARDS OF CONDUCT

- 4.1 Attendance/Punctuality
- 4.2 Absence Without Notice
- 4.3 Harassment, including Sexual Harassment
- 4.4 Telephone Use
- 4.5 Workplace Relationships
- 4.6 Telephone Use
- 4.7 Public Image
- 4.8 Substance Abuse
- 4.9 Tobacco Products

- 4.10 Internet Use
- 4.11 Company Property

SECTION 5 - BENEFITS AND SERVICES

- 5.1 Annual Leave
- 5.2 13th Month Pay
- 5.3 Salary Pay Day
- 5.4 Salary Performance Review
- 5.5 Maternity Leave
- 5.6 Paternity Leave
- 5.7 Overtime
- 5.8 Record Keeping
- 5.9 Holidays

SECTION 1

INTRODUCTION

This Manual is designed to acquaint employees with Fil-Chi Media Productions, Inc. (the “Company”) and provide employees with information about working conditions, benefits, and policies affecting their employment.

The information contained in this Manual applies to all employees of the Company. Following the policies described in this Manual is considered a condition of continued employment. However, nothing in this Manual alters an employee’s status. The contents of this Manual shall not constitute nor be construed as a promise of employment or as a contract between the Company and any of its employees. The Manual is a summary of Company policies, which are presented here only as a matter of information.

One of the Company’s objectives is to provide its employees with a work environment that is constructive to both personal and professional growth. This Manual serves as a guide in attaining such objectives, and employees are responsible for reading, understanding, and complying with the provisions of this Manual.

1.1 CHANGES IN POLICY

This Manual supersedes all previous employee manuals and memos that may have been issued from time to time on subjects covered in this Manual.

However, since the Company’s business and organization are subject to change, the Company reserves the right to interpret, change, suspend, cancel, or dispute with or without notice all or any part of its policies, procedures, and benefits at any time. The Company will notify all employees of these changes. Changes will be effective on the dates determined by the Company, and after those dates, all superseded policies will be null.

No individual supervisor or manager has the authority to change policies at any time. If an employee is uncertain about any policy or procedure, he/she/they should speak with his/her/their direct supervisor.

Change of any policy, procedure, regulation, and guidelines, as well as any memorandum/letter of this nature applicable to the entire Company must be signed by the President/CEO. If it concerns just a specific department, the department manager should issue the letter but must co-sign with the President/CEO.

1.2 EMPLOYMENT APPLICATIONS

The Company relies upon the accuracy of information contained in the employment application and the accuracy of other data presented throughout the hiring process and employment. Any misrepresentations, falsifications, or material omissions in any of

this information or data may result in exclusion of the individual from further consideration for employment or, if the person has been hired, termination of employment.

1.3 EMPLOYMENT RELATIONSHIP

Each employee enters into employment voluntarily, and he/she/they are free to resign at any time for any or no reason. Similarly, the Company is free to conclude its relationship with any employee at any time for any or no reason. Following the probationary period, employees are required to follow the Employment Termination Policy (See Section 3.13).

SECTION 2

DEFINITIONS OF EMPLOYEES STATUS

“EMPLOYEES” DEFINED

An “employee” of the Company is a person who regularly works for the Company on a wage or salary basis. “Employees” may include regular full-time, and temporary persons, and others employed with the Company who are subject to the control and direction of the Company in the performance of their duties.

REGULAR FULL-TIME

Employees who have completed the six (6) months probationary period and who are regularly scheduled to work forty (40) or more hours per week. Generally, they are eligible for the Company’s benefit package, subject to the terms, conditions, and limitations of each benefit program.

TEMPORARY (FULL-TIME or PART-TIME)

Those whose performance is being evaluated to determine whether further employment in a specific position or with the Company is appropriate or individuals who are hired as interim replacements to assist in the completion of a specific project or for vacation relief. Employment beyond any initially stated period does not in any way imply a change in employment status. Temporary employees retain that status until they are notified of a change. They are not eligible for any of the Company’s benefit programs.

PROBATIONARY PERIOD FOR NEW EMPLOYEES

Employees who are regularly scheduled to work forty (40) or more hours per week but have not completed the six (6) months probationary period yet. A new employee whose performance is being evaluated to determine whether further employment in a specific position or with the Company is appropriate. When an employee completes the probationary period, the employee will be notified of his/her/their new status with the Company

SECTION 3

EMPLOYMENT POLICIES

3.1 NON-DISCRIMINATION

In order to provide equal employment and advancement opportunities to all individuals, employment decisions at the Company will be based on merit, qualifications, and abilities. The Company does not discriminate in employment opportunities or practices because of race, color, religion, sex, national origin, age, or disability.

The Company will make reasonable accommodations for qualified individuals with known disabilities unless doing so would result in an undue hardship. This policy governs all aspects of employment, including selection, job assignment, compensation, discipline, termination, and access to benefits and training.

Employees with questions or concerns about discrimination in the workplace are encouraged to bring these issues to the attention of their supervisor. Employees can raise concerns and make reports without fear of reprisal. Anyone found to be engaging in unlawful discrimination will be subject to disciplinary action, including termination of employment.

3.2 NON-DISCLOSURE/CONFIDENTIALITY

The protection of confidential business information and trade secrets is vital to the interests and success of the Company. Such confidential information includes, but is not limited to, the following examples:

- Compensation data,
- Financial information,
- Marketing strategies,
- Pending projects and proposals,
- Proprietary production processes,
- Personnel/Payroll records, and
- Conversations between any persons associated with the company.

Employees who improperly use or disclose trade secrets or confidential business information will be subject to disciplinary action, including termination of employment and legal action, even if they do not actually benefit from the disclosed information.

3.3 REPRESENTATION OF AUTHORITY

Signature on behalf of the Company: Any official signature on a payment check, contract, agreement and similar, is only allowed to be made by the President or anyone nominated by the board of directors.

Communication: The department manager should automatically give a copy of any key/important communication, whether internal or external, to the President to keep her updated.

3.4 NEW EMPLOYEE ORIENTATION

Orientation is a formal welcoming process that is designed to make the new employee feel comfortable, informed about the company, and prepared for their position. New employee orientation is conducted by a Human Resources representative or authorized personnel, and includes an overview of the company history, an explanation of the company core values, vision, and mission; and company goals and objectives. In addition, the new employee will be given an overview of benefits, tax, and legal issues, and complete any necessary paperwork.

Employees are presented with all codes, keys, and procedures needed to navigate within the workplace. The new employee's supervisor then introduces the new hire to staff throughout the company, reviews their job description and scope of position, explains the Company's evaluation procedures, and helps the new employee get started on specific functions.

3.5 OFFICE HOURS

The Company office is open for business from 9:00 a.m. to 7:00 p.m. Monday to Friday, and on some weekends and holidays if there are shoots or events.

3.6 LUNCH PERIODS

Employees are allowed a one-hour lunch break from 12 nn to 1 p.m. or can be taken on a staggered schedule between 11:00 a.m. to 3:00 p.m. depending on the urgency the job requires.

3.7 BREAK PERIODS

The Company provides the following break periods:

EMPLOYEES	MORNING	AFTERNOON
From all department	15 minutes	15 minutes

If employees have unexpected personal business to take care of, they must notify their direct supervisor to discuss time away from work and make provisions as necessary. Personal business should be conducted on the employee's own time.

3.8 PERSONNEL FILES

Employee personnel files include the following: résumé, job application, job description, records of participation in training events, salary history, records of disciplinary action and documents related to employee performance reviews, coaching, and mentoring.

Personnel files are the property of the Company and access to the information is restricted. Management personnel of the Company who have a legitimate reason to review the file are allowed to do so.

Employees who wish to review their own file should contact their superior, administration manager, or Human Resources representative. With reasonable advance notice, the employee may review his/her/their personnel file in the Company's office and in the presence of his/her/their superior, administration manager, or Human Resources Representative.

3.9 PERSONNEL DATA CHANGES

It is the responsibility of each employee to promptly notify their superior or the Company Human Resources Department of any changes in personnel data such as:

- Mailing address,
- Telephone numbers,
- Name and number of dependents,
- Individuals to be contacted in the event of an emergency, and
- Change of status.

An employee's personnel data should be accurate and current at all times.

3.10 INCLEMENT WEATHER/EMERGENCY CLOSINGS

At times, emergencies such as severe weather, fires, or power failures can disrupt company operations. In this event, the administration manager or authorized personnel shall immediately inform the CEO and get permission to close the office.

When the decision is made to close the office, employees will receive official notification from the said personnel or their superiors.

Time off from scheduled work due to emergency closings will be unpaid for all employees. However, if employees would like to be paid, they are permitted to use their remaining vacation leave/s.

Employees who report for work during weather disturbances are entitled to full regular pay provided that they have worked for not less than six (6) hours. Those who worked for less than six (6) hours shall only be entitled to the proportionate amount of the regular pay.

Employees who fail or refuse to work because of imminent danger resulting from weather disturbances and similar occurrences shall not be subject to administrative sanction.

3.11 EMPLOYEE PERFORMANCE REVIEW AND PLANNING SESSIONS

Supervisors and managers will conduct end of season performance reviews and planning sessions with all regular full-time and regular part-time employees after every season or once every quarter and an annual performance review after an employee's one (1) year tenure. Supervisors and managers may conduct informal performance reviews and planning sessions more often if they choose to (as per set schedule of the President).

Performance reviews and planning sessions are designed for the superior and the employee to discuss his/her/their current job tasks, encourage and recognize attributes, and discuss positive, purposeful approaches for meeting work-related goals. Together, employees and superior discuss ways in which the employee can accomplish goals or learn new skills. The planning sessions are designed for the employee and his/her/their superior to make and agree on new goals, skills, and areas for improvement.

The Company directly links wage and salary increases with performance. The performance reviews and planning sessions will have a direct effect on any changes in compensation. For this reason, among others, it is important to prepare for these reviews carefully, and participate in them fully.

New employees will be reviewed at the end of their probationary periods (see Section 3.3, Probationary Period for New Employees). After the initial review, the employee will be reviewed according to the regular semi-annual schedule.

3.12 OUTSIDE EMPLOYMENT

When one accepts employment with the Company, it is understood that he/she/they must not take outside employment without prior consent of the Company. If one has already taken concurrent employment on either a consulting/ part-time basis, he/she/they must report in writing immediately to the Management about the company name and its business nature, his/her/their job nature/description/wage/time allocation, etc. it is at the discretion of the Management to give approval or to make a settlement.

3.13 CORRECTIVE ACTION

The Company holds each of its employees to certain work rules and standards of conduct (see Section 4). When an employee deviates from these rules and standards, the Company expects the employee's supervisor to take corrective action.

Corrective action at the Company is progressive. That is, the action taken in response to a rule infraction or violation of standards typically follows a pattern increasing in seriousness until the infraction or violation is corrected.

The usual sequence of corrective actions ranges from verbal and written warning, suspension, and finally termination of employment. In deciding which initial corrective action would be appropriate, superiors will consider the seriousness of the infraction, the circumstances surrounding the matter, and the employee's previous record.

The following set of rules and regulations is therefore published in order that all employees will know the standards that govern their norm of conduct for their proper guidance.

Classification of Refraction:

Offenses	1st Offense	2nd Offense	3rd Offense	4th Offense
Minor	Verbal Warning w/ Written Notice	Written Warning	Written Warning	Termination
Serious	Verbal Warning w/ Written Notice	Suspension	Termination	
Very Serious	Suspension	Termination		
Grave	Termination			

I. MINOR OFFENSES:

- a. Safety and Security
 - a.1. Willful failure to wear company ID card before entering and while within the company premises.
 - a.2. Loitering or being in an area where one has no legitimate business.
- b. Sanitation and Health
 - b.1 Willful disregard of directions relative to cleanliness, orderliness such as littering, smudging, leaving soiled dishes on table, defacing, removing official notices and signs on bulletin boards or other specified areas and printing, writing or posting on company property without authorization.
- c. Insubordination
 - c.1. Unauthorized cessation of work to do personal activities before the end of work hours for the day.
- d. Continuous tardiness

II. SERIOUS OFFENSES:

- a. Exhibiting disrespectfulness by means of but not limited to:
 - a.1. Making faces.
 - a.2. Unattending inquiry.
 - a.3. Avoiding customers for any reason.
 - a.4. Any show of arrogance in words and in action.

- b. Presenting unverified information or false claims about the product - this is not supported by the company.
- c. Offering personal business and other transactions other than the assigned task.
- d. Unequal treatment and disregard of customers.
- e. Doing any service beyond what the company offers.
- f. Safety and Security
 - f.1. Entering restricted areas without authorization or permission.
 - f.2. Not fulfilling duties as the last employee who leaves the office at the end of the business day (i.e. ensuring that all doors are securely locked, the alarm system is armed, thermostats are set on appropriate evening and/or weekend setting, and all appliances and lights are turned off with the exception of the lights normally left on for security purposes)
- g. Conduct and Behavior
 - g.1. Engaging in boisterous or disorderly conduct that may distract others from the performance of their duties and functions.
 - g.2. Holding unauthorized meetings on company time
 - g.3. Selling of goods to fellow workers during regular working hours.
 - g.4. Intentional slowdown in work, restricting output or deliberate delaying of a project evaluation.
- h. Attendance
 - h.1. Malingering
 - h.2. Abuse of sick leave benefits by claiming or reporting to be sick which is not true.
 - h.3. Frequent Tardiness
- i. Wasting work time such as:
 - i.1. Extending or prolonging break time periods.
 - i.2. Using company time, materials, equipment, and other properties for unofficial work.
 - i.3. Reading magazines, books, newspapers, surfing, use of social media, watching videos, playing games or activities not related to the job while on official time.
- j. Regularly receiving visitors or frequent telephone calls or texting during working hours for personal business.
- k. Poor Performance
 - k.1 Inability to carry out required / expected tasks based on instructions from superior.
 - k.2 Outputs that are less than the expected industry or professional standards.
 - k.3 Performance Evaluation of less than 70%.

III. VERY SERIOUS OFFENSES:

- a. Holding back information or any promotion intended for customers.
- b. Conduct and Behavior
 - b.1. Gambling, lottery, or any game of chance on company time and/or within company premises.
 - b.2. Rumor mongering, intriguing, innuendo, making false defamatory or malicious statements against another employee so as to cast dishonor, discredit, or contempt on the latter.
- c. Attendance
 - c.1. ABSENCE WITHOUT PERMISSION (AWOP)
 - c.1.1. Starts with permission or suspension but personally extends it beyond the scheduled date without permission or informing the immediate Supervisor.
 - c.1.2. Asked permission but was not granted due to unacceptable/unjustifiable cause or reason.
- d. Gross inefficiency as negligence in the performance of duties causing the company or the client great/enormous loss or damage.
- e. Staying in the office beyond working hours and rest days without the proper authorization.

IV. GRAVE OFFENSES:

- a. Safety and Security
 - a.1. Unauthorized use and/or reckless driving of any company vehicle within or outside the premises.
 - a.2. Negligence in handling/operating of tools or equipment resulting in injury and/or damage to company property.
 - a.3. Carrying or concealing any deadly weapons, explosives or unlicensed firearms.
 - a.4. Altering, destroying, concealing, duplicating, or taking away any company properties such as client's information, documents, computer data, video files, finished goods, etc. without prior written approval of the President/CEO.
- b. Dishonesty/Disloyalty
 - b.1. Deliberate failure to time-in / out without adequate reasons
 - b.2. Tampering of time-in / out
 - b.3. Conniving with a co-employee in doing time-in / out for the other employee's timecard or keeping information that affects regular operation and that will result in damage to the company.
 - b.4. Intentionally covering up a mistake or a situation that will result to potential damage to the company
 - b.5. Stealing/pilferage or attempting to steal from the company co-employee or others within the company premises.

- b.6. Releasing information of the company to competitors or other bodies, which might or might not have conflicting interests with the company without prior written approval of the President/CEO.
 - b.7. Bribery in any form or manner, which include offering, accepting anything of value in exchange for a job, assignment, special Favor Company contacts.
 - b.8. Malversation/misappropriation in all forms of company funds or property
 - b.9. Exaggerating any financial claims.
 - b.8. All other acts of dishonesty that cause or tend to cause prejudice to the Company.
- c. Conduct and Behavior
 - c.1. Conviction of any criminal offense.
 - c.2. Theft, swindling or any act of indecent, immorality or lasciviousness against co-employee within the company premises.
- d. Attendance
 - ABSENT WITHOUT OFFICIAL LEAVE (AWOL)
 - d.1. Done without adequate or compelling reason and without prior knowledge of immediate Supervisor exceeding the four (4) hours' notice requirement.
 - d.1.2. Exceeding five (5) days, which is to be considered a total abandonment of work.
 - d.1.3. Willful failure to file leave request immediately upon reporting for work in case of sickness or emergency.
- e. Soliciting or borrowing any financial aid from customers.
- f. Giving any malicious information to customers against the company or the product.
- g. Insubordination
 - g.1. Insubordination, refusal to carry out or willful disobedience of legitimate verbal or written instruction or orders.
 - g.2. Willful disrespect on the honor or person of the employees, supervisor, or any company executive by uttering threats of defamatory language and/or inflicting physical injury or damage to the company.
- h. Failure or refusal to follow verbal or written job instructions where damage or loss is caused to the company property as a result of such failure or refusal.
- i. Willfully disobeys a lawful and reasonable order/instruction or misconduct him/her duties or being habitually neglectful in carrying out his/her duties.
- j. Abuse of authority or exceeding authority.
- k. Use of Company property / assets for personal purposes

3.14 EMPLOYMENT TERMINATION

Termination of employment is an inevitable part of personnel activity within any organization, and many of the reasons for termination are routine. Below are a few examples of some of the most common circumstances under which employment is terminated:

- **Resignation** – voluntary employment termination initiated by an employee. A 30-day notice of resignation must be in written form and be sent to the immediate superior then to the President/CEO.
- **Termination** – involuntary employment termination initiated by the Company will be exercised by the President/CEO.
- **Layoff/Retrenchment** – involuntary employment termination initiated by the Company for non-disciplinary reasons.
- **Retirement** – the employment relationship usually terminated at the retirement age. However, upon employment retirement, the Company may, on its own discretion and initiative, re-employ the relevant employee under a specific fixed-term contract.

When an employee intends to terminate his/her/their employment with the Company, he/she/they shall give the Company at least one (1) month prior written notice.

Since employment with the Company is based on mutual consent, both the employee and the Company have the right to terminate employment at will, with or without cause during the Introductory/Probationary Period for New Employees.

Any employee who terminates employment with the Company shall return all files, records, keys, and any other materials that are property of the Company. No final settlement of an employee's pay will be made until all accountabilities are returned in appropriate condition. The cost of replacing non-returned items will be deducted from the employee's final paycheck. Furthermore, any outstanding financial obligations owed to the Company will also be deducted from the employee's final check.

Employees' benefits will be affected by employment termination in the following manner. All accrued vested benefits that are due and payable at termination will be paid. Some benefits may be continued at the employee's expense (See Section 5, Benefits) if the employee elects to do so. The employee will be notified of the benefits that may be continued and of the terms, conditions, and limitations.

Final pay shall be released one (1) month upon completion of clearance procedures by the employee.

3.15 HEALTH AND SAFETY

Each employee is expected to obey health and safety rules and exercise caution and common sense in all work activities. Employees must immediately report any unsafe conditions to their superiors. Employees who violate safety standards, cause hazardous or dangerous situations, or fail to report, or where appropriate, remedy such situations, may be subject to disciplinary action including termination of employment.

In the case of an accident that results in injury, regardless of how insignificant the injury may appear, employees should notify their superior (See Section 3.16, Employee Requiring Medical Attention).

All employees shall comply with all workplace measures to ensure health and safety standards are followed like observing physical distancing and proper respiratory etiquette, hand washing and disinfection, and use of personal protective equipment.

3.16 HEALTH-RELATED ISSUES

Employees who become aware of any health-related issue, including pregnancy, should notify their superiors of such health status. This policy has been instituted strictly to protect the employee. Employees shall also follow COVID-19 health protocols issued in memoranda, circulars, orders, or guidelines by the DTI, DOLE, DOH.

A written “permission to work” from the employee’s doctor is required at the time or shortly after notice has been given. The doctor’s note should specify whether the employee is able to perform regular duties as outlined in his/her/their job description.

A leave of absence may be granted on a case-by-case basis. If the need arises for a leave of absence, employees should notify their superior.

3.17 EMPLOYEE REQUIRING MEDICAL ATTENTION

In the event an employee requires medical attention, whether injured or becoming ill while at work, the employee’s personal physician must be notified immediately, especially if the Company’s first-aid and the emergency medicines, medical supplies, and facilities are not sufficient to address the emergency. If it is necessary for the employee to be seen by a doctor or go to the hospital, the first-aid shall immediately call or refer the injured to one. Further, the employee’s emergency contact shall be advised of the situation and the Company shall provide the necessary transportation facilities to a medical/dental clinic located not more than five (5) kilometers away from the workplace. The Company shall have a written agreement with the medical/dental clinic to attend to such emergencies brought to them.

A physician’s “fit to work” notice may be required for the employee to be able to return to work. Should the employee be entitled to Employee Compensation Program claims due to sickness/injury, the employee shall comply with the guidelines and procedures for filing such claim with the SSS.

The Company shall comply with DOLE and DOH issuances on COVID-19 prevention, detection, testing, quarantine, and isolation.

3.18 BUILDING SECURITY

All employees who are issued keys to the office are responsible for their safekeeping. These employees will sign a Building Key Disbursement form upon receiving the key. The last employee, or a designated employee, who leaves the office at the end of the business day assumes the responsibility to ensure that all doors are securely locked, the alarm system is armed, thermostats are set on appropriate evening and/or weekend setting, and all appliances and lights are turned off with the exception of the lights normally left on for security purposes. Employees are not allowed on Company property after hours without prior authorization from the President.

3.19 INSURANCE ON PERSONAL EFFECTS

All employees should be sure that their own personal insurance policies cover the loss of anything occasionally left at the office. The Company assumes no risk for any loss or damage to personal property.

3.20 SUPPLIES; EXPENDITURES; OBLIGATING THE COMPANY

Only authorized persons may purchase supplies in the name of the Company. No employee whose regular duties do not include purchasing shall incur any expense on behalf of the Company or bind the Company by any promise or representation without written approval.

3.21 EXPENSE REIMBURSEMENT

Expenses for reimbursement incurred by an employee must have prior approval by a supervisor.

The Company shall only reimburse travel expenses made for official business (shoots, collection, client meetings among others) in the event that the Company's service vehicle is not available. This covers travels made from the office to the location of official business and vice versa, backed by presentation of proof, duly supported by bills or invoices with official receipts of expenses incurred with prior approval from the management.

Requests for transportation reimbursement for shoots / editing ending late shall no longer be entertained, but rather the standard practice of paying the necessary overtime and night differential (for works done within 10pm to 6am) pay as required by law shall be made.

3.22 PARKING

Employees must park their cars in areas indicated and provided by the Company.

3.23 VISITORS IN THE WORKPLACE

To provide for the safety and security of employees, visitors, and the facilities at the Company, only authorized visitors are allowed in the workplace. Restricting unauthorized visitors helps ensure security, decreases insurance liability, protects confidential information, safeguards employee welfare, and avoids potential distractions and disturbances.

All visitors must enter through the main reception area, stay and wait at the visitor's lounge, and are not allowed to go straight inside the workplace. Authorized visitors will be escorted to their destination and must be accompanied by an employee at all times should they enter the working premises.

SECTION 4

STANDARDS OF CONDUCT

The work rules and standards of conduct for the Company are important, and the Company regards them seriously. All employees are urged to become familiar with these rules and standards. In addition, employees are expected to follow the rules and standards faithfully in doing their own jobs and conducting the Company's business. Please note that any employee who deviates from these rules and standards will be subject to corrective action, up to and including termination of employment (see Section 3.12, Corrective Action).

4.1 ATTENDANCE/PUNCTUALITY

The Company expects that every employee will be regular and punctual in attendance. This means being in the office, ready to work, at their starting time each day. Absenteeism and tardiness places a burden on other employees and on the Company.

Late: If an employee is unable to report for work on time for any reason, he/she/they must notify his/her/their superiors and the management before regular starting time. The employee is responsible for speaking directly with his/her/their superiors and the management about such absence using any form of messaging platforms.

Any employee reporting to work after 9:15 a.m. shall be treated as late. Frequency of late will be recorded in his/her/their staff-file and will be taken into consideration during annual salary review.

Absence: If one is unexpectedly unable to come to work, he/she/they should phone his/her/their Supervisor and the Management with the reason before 9:15 a.m. (the same day). Absence of this nature will lead to a deduction of either leave or pay.

If there comes a time when an employee sees that he/she/they will need to work some hours other than those that make up the usual work week, the employee must notify his/her/their supervisor at least one (1) working day in advance. Each request for special work hours will be considered separately, in light of the employee's needs and the needs of the Company. Such requests may or may not be granted.

4.2 ABSENCE WITHOUT NOTICE

When an employee is unable to work owing to illness or an accident, he/she/they must notify his/her/their superior. This will allow the Company to arrange for temporary coverage of duties and help other employees to continue work in the employee's absence. If the employee does not report for work and the Company is not notified of his/her/their status, it will be assumed after three (3) consecutive days of absence that he/she/they have resigned, and he/she/they will be removed from the payroll.

If an employee becomes ill while at work or must leave the office for some other reason before the end of the workday, he/she/they must inform his/her/their superior of the situation.

4.3 HARASSMENT, INCLUDING SEXUAL HARASSMENT

Sexual Harassment Defined

Sexual Harassment is a form of misconduct that undermines the employment relationship. No employee, either male or female, should be subjected verbally or physically to unsolicited and unwelcome sexual overtures or conduct.

“Sexual Harassment” refers to unwelcome behavior that is offensive, debilitates morale, or interferes with work effectiveness. Such behavior may be in the form of unwanted physical, verbal, or visual sexual advances, requests or demands for sexual favors, and other sexually oriented conduct that is distasteful or objectionable to the recipient.

The Company likewise adopts and includes the definition of sexual harassment set forth in Section 3 of R.A. 7877, which provides that sexual harassment in the workplace is committed by an employer, employee, manager, supervisor, agent of the employer, or any other person who, having authority, influence or moral ascendancy over another in a work environment, demands or otherwise requires any sexual favor from another, regardless of whether the demand, request, or requirement for submission is accepted by the victim.

Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual harassment when this conduct explicitly or implicitly affects an individual's employment, unreasonably interferes with an individual's work performance, or creates an intimidating, hostile, or offensive work environment.

Sexual harassment can occur in a variety of circumstances, including but not limited to the following:

- The victim as well as the harasser may be a woman or a man. The victim does not have to be of the opposite sex.
- The harasser can be the victim's supervisor, an agent of the employer, a supervisor in another area, a co-worker, or a non-employee.
- The victim does not have to be the person harassed but could be anyone affected by the offensive conduct.
- Unlawful sexual harassment may occur without economic injury to or discharge of the victim.
- The harasser's conduct must be unwelcome.

The Company is committed to providing a work environment that is free of discrimination and unlawful harassment. Actions, words, jokes, or comments based on an individual's sex, race, ethnicity, age, religion, or any other legally protected characteristic will not be tolerated.

If an employee believes he/she/they have been the victim of harassment, or knows of another employee who has, report it immediately. Employees can raise concerns and make reports without fear of reprisal.

Anybody who becomes aware of possible harassment should promptly advise their superior or the Human Resources Representative who will handle the matter in a timely and confidential manner.

4.5 WORKPLACE RELATIONSHIPS

All consenting romantic and sexual relationships between an employee and their subordinate are inappropriate, must be disclosed, and will result in reassignment so that the employee is no longer directly supervised by the person with whom s/he is or was in a relationship. The employees must submit a Consensual Relationship Agreement (to be requested from the management) that discloses such relationships to the Human Resources Department.

When a conflict-of-interest or potential risk is identified due to an employee's relationship with a subordinate, the Company will work with the parties involved to consider options for resolving the problem. A supervisor shall withdraw from and shall not participate in activities or decisions involving hiring, evaluations, promotions, and discipline that reward or penalize any person with whom the supervisor has or has had a romantic and/or sexual relationship. In some cases, other measures may be necessary, such as transfer of one or both parties to other positions or departments. If one or both parties refuse to accept a reasonable solution, such refusal will be deemed a voluntary resignation. Failure to cooperate with the Company to resolve a conflict or problem caused by a romantic or sexual relationship between an employee and subordinate in a mutually agreeable fashion may be deemed insubordination and result in disciplinary action up to and including termination.

The parties should recognize that other employees and the workplace generally may be adversely affected by such behavior. Employees should be aware that consenting romantic and sexual relationships between employees not involving supervisors and their subordinates can also impact the office environment and work performance.

4.6 TELEPHONE USE

The Company telephones are intended for the use of serving its customers and in conducting the Company's business.

Personal usage during business hours is discouraged except for extreme emergencies. All personal telephone calls should be kept brief to avoid congestion on the telephone lines.

To respect the rights of all employees and avoid miscommunication in the office, employees must inform family members and friends to limit personal telephone calls during working hours.

If an employee is found to be deviating from this policy, he/she/they will be subject to disciplinary action (See Section 3.12, Corrective Action).

4.7 PUBLIC IMAGE

A professional appearance is important anytime that an employee comes in contact with customers, potential customers, and during shoots. Employees should be well groomed and dressed appropriately for Company business and for their position in particular.

The following items are considered inappropriate working attire for the Company:

From Monday to Friday:

- Slippers
- Tank tops or revealing shirts
- Short mini skirts

When meeting with a client, the dress code is more business-oriented, including attire such as:

- Slacks and polo shirt with tie or barong for males
- Dress or skirt and blouse for females

During shoots, all production staff are required to dress appropriately. Staff may opt to wear CHiNOY TV's official shirts.

Employees shall consult superiors if they have any questions about appropriate business attire.

4.8 SUBSTANCE ABUSE

The Company is committed to providing a safe and productive workplace for its employees. In keeping with this commitment, the following rules regarding alcohol and drug abuse have been established for all staff members, regardless of rank or position, including regular, probationary, and temporary employees. The rules apply during working hours to all employees of the Company while they are on Company premises or elsewhere on Company business.

- The manufacture, distribution, possession, sale, or purchase of controlled substances of abuse on Company property is prohibited.

- Being under the influence of illegal drugs, alcohol, or substances of abuse on Company property is prohibited.
- Working while under the influence of prescription drugs that impair performance is prohibited.

So that there is no question about what these rules signify, please note the following definitions:

Company property: All Company-owned or leased property used by employees.

Controlled substance of abuse: Any alcoholic beverages and substance.

Drug: Any chemical substance that produces physical, mental, emotional, or behavioral change in the user.

Drug paraphernalia: Equipment, a product, or material that is used or intended for use in concealing an illegal drug, or otherwise introducing into the human body an illegal drug or controlled substance.

Illegal drug:

- a. Any drug or derivative thereof whose use, possession, sale, transfer, attempted sale or transfer, manufacture, or storage is illegal or regulated under any lawful regulation.
- b. Any drug, including – but not limited to – a prescription drug, used for any reason other than that prescribed by a physician.
- c. Inhalants used illegally.

Under the influence: A state of not having the normal use of mental or physical faculties resulting from the voluntary introduction into the body of an alcoholic beverage, drug, or substance of abuse.

Consistent with the rules listed above, any of the following actions constitutes a violation of the Company's policy on drugs and may subject an employee to disciplinary action, up to and including immediate termination.

Using, selling, purchasing, transferring, manufacturing, or storing an illegal drug or drug paraphernalia, or attempting to or assisting another to do so, while in the course of employment.

Working or reporting to work, conducting Company business or being on Company property while under the influence of an illegal drug or alcohol, or in an impaired condition.

4.9 TOBACCO PRODUCTS

The use of tobacco products is not permitted anywhere on the Company's premises except in authorized and designated locations. Employees must follow all rules posted

in designated smoking areas and adhere to all policies associated with this policy (See Sections 3.6, Break Periods and 3.14, Safety).

4.10 INTERNET USE

The Company employees are allowed to use the Internet and e-mail when necessary to serve its customers and conduct the Company's business.

Employees may use the Internet when appropriate to access information needed to conduct the business of the Company. Employees may use e-mail when appropriate for Company business correspondence.

Use of the Internet must not disrupt operation of the Company computer network. Use of the Internet must not interfere with an employee's productivity. Employees are responsible for using the Internet in a manner that is ethical and lawful.

Internet messages are public and not private. The Company reserves the right to access and monitor all files and messages on its systems.

4.11 COMPANY PROPERTY

Employees should exercise care and protect Company property, information, and other assets under his/her custody and control and guard against potential losses, corruption, misuse, or theft. In case of loss or damage, the employee to whom a property has been assigned shall be held accountable whether or not the loss or damage was his/her/their fault or caused by another. Any suspected fraud or theft of Company assets must be reported to the Human Resources Department to allow for immediate investigations and possible recovery of the asset.

Company's assets include:

1. Physical property, premises, supplies, and production equipment
2. Funds, securities, and negotiable instruments
3. Computer systems and information technology, including internet access
4. Intellectual property

Theft of any company property shall be punishable by dismissal for cause.

Employees are also responsible in ensuring that office furniture and production equipment assigned to him/her/them are regularly maintained. He/She/They should promptly report to the Human Resources Department any needed repairs thereof to keep such furniture and equipment in good operating condition.

Lending of company property to employees and others for personal use shall be prohibited.

SECTION 5

BENEFITS AND SERVICES

The Company offers a benefits program for its regular full-time and employees.

5.1 ANNUAL LEAVE (for regularized employees only)

- a. **Vacation leave:** Accumulative seven (7) days per year.
- b. **Sick leave:** Accumulative seven (7) days per year.
- c. **Emergency leave:** Any leave other than vacation leave and sick leave that requires the immediate attention and indispensable presence of the employee, and for which advance application for leave cannot be done (e.g. illness/death of a dependent or immediate family member, catastrophic cases – floods, earthquake & storm, medical emergencies), charged to available leave credits.

Should unused VL and SL at the end of the year be more than five (5), five (5) shall be converted to cash while the rest shall be carried over to the following year. Unused VL are convertible to cash upon resignation.

Employees who are required to do on site work shall no longer be allowed to do WFH and utilization of leaves is encouraged instead. (Ex. If an employee suddenly feels ill before work, instead of requesting to do a WFH for that particular day, the employee may file an SL backed by a medical certificate, utilize compensatory time off credits or have an unpaid leave instead.)

REQUIREMENTS AND PROCEDURES

- a. Every employee shall accomplish a vacation leave form and such applications should be submitted to his/her/their supervisor at least seven (7) days in advance for approval and at least two (2) weeks prior for leaves for three (3) consecutive days and up; otherwise, no leave would be granted.
- b. In cases of absence due to sickness of the employee, the same should be reported as soon as possible on the day of the absence. Failure to inform the immediate superior or the Admin. Dept. will be considered AWOL and will be given the corresponding penalty. Application for sick leave shall be accomplished upon reporting for work. A medical certificate shall be attached; otherwise, it will be considered leave without pay.
- c. In case of unexpected absences, it shall be charged to any remaining vacation or sick leave. However, if there are no more leave credits, it shall be considered leave without pay.

5.2 13th month payday: Once a year and is normally paid on or before December 25th to the employees.

5.3 Salary payday: Once a month and is normally paid directly into each employee's bank account on the 15th (covering 26th to 10th of the month) and last working day of the month (covering 11th to 25th day of the month).

5.4 Salary/Performance Review: Once a year, usually to be done in the last quarter.

5.5 MATERNITY LEAVE

Married female employees who maybe pregnant and has rendered at least one (1) year of continuous service.

The Company shall grant pre-natal maternity leave of fifteen (15) calendar days and a post-natal leave of forty-five (45) calendar days for normal delivery and sixty-three (63) calendar days for cesarean delivery with full pay based on her average daily salary credit for the said period.

- a. Concerned employee shall notify the Company of her pregnancy and the probable date of childbirth by accomplishing SSS Maternity Notification Form and filing the same to the Administration Dept.
- b. Accomplished maternity leave form shall be filed at least two (2) weeks before the employee goes on leave. Employees availing of this benefit the first time should attach a photocopy of her marriage contract.
- c. Payment shall be advanced by the employer in two (2) equal payments within thirty (30) days from filing of the maternity leave application form.
- d. Payment of daily maternity benefits shall be a part of the recovery of sickness benefit for the same compensable period.
- e. As provided for by law, the employer shall pay maternity leave only for the four (4) deliveries by a woman.
- f. Vacation leave can be availed of in addition to maternity leave.
- g. Sick leave benefits cannot be applied as an extension of maternity leave unless there are medical complications or in case of cesarean operation.

5.6 PATERNITY LEAVE

Paternity leave law grants a male employee a leave of seven (7) working days with full pay on the occasion of his wife's childbirth or miscarriage. The purpose of which is to enable him to effectively lend support to his wife in her period of recovery and/or in the nursing of the newly born child.

Conditions:

- a. Marriage is lawful;
- b. Husband and wife are living together;
- c. Man is the employee of the firm or the Company at the time of his wife's delivery;
- d. It can be enjoyed only during the first four (4) deliveries.

5.7 OVERTIME

A work is considered overtime (OT) work only if it is performed beyond the normal working time of eight hours (8) hours a day, whether it be a holiday or a rest day, and is done with the knowledge and prior approval of the immediate superior. Likewise, it should be relevant and beneficial to the employer. Under time shall, in no way be offset by overtime. Neither can excess minutes each day be accumulated to claim for overtime pay.

All employees regardless of status of employment are entitled to overtime.

All employees must fill-up an overtime form **on the day** the overtime will be taken and have it approved by the **Management**, noted by **Admin**. No approved overtime form, no overtime pay.

Legal considerations regarding overtime pay:

Ordinary Work Day Overtime

On ordinary work days, the overtime pay rate per hour in excess of the regular eight (8) hours of work is as follows:

$(\text{Employee's Hourly Rate} \times 125\%) \times \text{number of overtime hours worked}$

Rest Day or Special Holiday Overtime

If an employee renders work during his/her designated rest day or on a Special Holiday, the computation will be as follows:

$(\text{Employee's Hourly Rate} \times 130\%) \times \text{number of overtime hours worked}$

If the employee renders work beyond eight (8) hours during his/her designated rest day or a Special Holiday, the computation will then be as follows:

$(\text{Employee's Hourly Rate} \times 130\% \times 130\%) \times \text{number of hours worked in excess of eight (8) hours}$

Rest Day and Special Holiday Overtime

If an employee renders work during a Special Holiday that also happens to be his/her designated rest day, the computation will be as follows:

$(\text{Employee's Hourly Rate} \times 150\%) \times \text{number of overtime hours worked}$

If the employee renders work beyond eight (8) hours during a Special Holiday that also happens to be his/her designated rest day, the computation will then be as follows:

$(\text{Employee's Hourly Rate} \times 150\% \times 130\%) \times \text{number of hours worked in excess of eight (8) hours}$

Regular Holiday Overtime

If an employee renders work during a Regular Holiday, the computation will be as follows:

$(\text{Employee's Hourly Rate} \times 200\%) \times \text{number of overtime hours worked}$

If the employee renders work beyond eight (8) hours during a Regular Holiday, the computation will then be as follows:

$(\text{Employee's Hourly Rate} \times 200\% \times 130\%) \times \text{number of hours worked in excess of eight (8) hours}$

Regular Holiday and Rest Day Overtime

If an employee renders work during a Regular Holiday that also happens to be his/her designated rest day, the computation will be as follows:

$(\text{Employee's Hourly Rate} \times 200\% \times 130\% \times 130\%) \times \text{number of overtime hours worked}$

Double Holiday Overtime

A double holiday happens when two (2) holidays fall on the same day. If an employee renders work during a double holiday, the computation will be as follows:

$(\text{Employee's Hourly Rate} \times 300\%) \times \text{number of overtime hours worked}$

PROCEDURES:

1. When overtime work is urgent and necessary, both the employee and the direct supervisor, shall agree on the hours of overtime needed and the schedule when they will be worked.
2. Employees rendering overtime shall submit the OT Form request via Sprout at least one (1) working day (excluding Saturdays and holidays) prior to the scheduled overtime. If the OF is not acted upon in the above period, the OF is deemed disapproved.
3. If for unforeseen circumstances the filing period cannot be observed, the OF and the written justification for its late filing from the unit head or supervisor, shall be submitted not later than the next working day after the overtime has been rendered. If the justification is deemed meritorious, the OF shall be approved.
4. Any employee who renders overtime work with a disapproved OF, shall not be entitled to overtime compensation.

Offsetting

All employees must notify the management in advance and fill-up an OT Form (Compensatory Time Off) via Sprout **on the day** the offset for approval.

5.8 RECORD KEEPING

The Human Resources Department maintains vacation days accrued and used. Each employee is responsible for verifying his/her/their pay stub to make sure the correct amount of hours appear.

5.9 HOLIDAYS

The Company observes all the paid legal holidays per year for all employees as mandated by law.